

NATIONAL ASSEMBLY SECRETARIAT

No.F.22 (4)/2016-Legis

Islamabad, the 17th March, 2016

OFFICE MEMORANDUM

*Extended up to
14-7-16*

Subject: EXTENSION FOR 120 DAYS OF THE PRIVATE POWER AND
INFRASTRUCTURE BOARD (AMENDMENT) ORDINANCE, 2015 (NO.XVI OF
2015) UNDER ARTICLE 89 (2) (a) (ii) OF THE CONSTITUTION OF THE
ISLAMIC REPUBLIC OF PAKISTAN.

The undersigned is directed to forward herewith a copy of the Resolution adopted by the National Assembly on the 17th March, 2016 under proviso to sub-paragraph (ii) of paragraph (a) of clause (2) of Article 89 of the Constitution of the Islamic Republic of Pakistan for extension of the Private Power and Infrastructure Board (Amendment) Ordinance, 2015 (XVI of 2015) for a further period of one hundred and twenty days, for further necessary action please.

1 & Legislation Section

83/2016

18-03-2016

valid up to 16-03-2016

REGISTERED No. **M - 302**
L-7646

The Gazette of Pakistan

**EXTRAORDINARY
PUBLISHED BY AUTHORITY**

ISLAMABAD, THURSDAY, NOVEMBER 19, 2015

PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW, JUSTICE AND HUMAN RIGHTS

Islamabad, the 18th November, 2015

No. F. 2(1)/2015-Pub.—The following Ordinance promulgated by the President is hereby published for general information:—

ORDINANCE NO. XVI OF 2015

AN

ORDINANCE

to amend the Private Power and Infrastructure Board Act, 2012

WHEREAS, in the interest of smooth functioning of the power sector of Pakistan and in order to enable processing of public sector power projects through Private Power and Infrastructure Board under the applicable power policies, it has become expedient to amend certain provision of the Private Power and Infrastructure Board Act, 2012;

(867)

Price: Rs. 3.00

[2013(2015)Ex.Gaz.]

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance shall be called the Private Power and Infrastructure Board (Amendment) Ordinance, 2015.

(2) It shall come into force at once.

2. Amendment of section 2, Act VI of 2012.—In the Private Power and Infrastructure Board Act, 2012 (VI of 2012), hereinafter referred to as the said Act, in section 2,—

- (i) in clause (f), the comma and words “, other than the Federal Government or any enterprise owned or controlled by the Federal Government” shall be omitted; and
- (ii) the existing clause (j), clause (k), clause (l) and clause (m) shall be renumbered as clause (k), clause (l), clause (m) and clause (n), respectively, and after clause (i) the following new clause shall be inserted, namely:—

“(j) “Public Sector Power Projects” means power generation, transmission or distribution facilities constructed or to be constructed, owned, managed or controlled by the Federal Government, a Provincial Government, a local authority or any entity owned or controlled by any such Government or authority where such facilities are specifically sanctioned by Federal Government to be established under the applicable power policies to be processed by Private Power and Infrastructure Board;”.

3. Amendment of section 5, Act VI of 2012.—In the said Act, in section 5, in sub-section (2),—

- (i) in clause (e), after the word “partnership” the words and comma “or for public sector power projects,” shall be inserted; and
- (ii) in clause (f), the word “their” shall be omitted and for the word “parties” the word “persons” shall be substituted.

MAMNOON HUSSAIN,
President.

JUSTICE (R)
MUHAMMAD RAZA KHAN,
Secretary.